

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE**  
Office of City Clerk

January 11, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Ash, and pursuant to support received by Mr. Collins and Dr. Rinne, agenda item #22(c) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON DECEMBER 28, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JANUARY 4, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Upon inquiry, City Treasurer Barb Dorr reviewed information available for vouchers payable to Express Services, Inc.(\$505.83), temporary clerical services; McGee, Hearne & Paiz (\$20,100.00), final bill for annual auditing services, and Dept. of Family Services (\$120.00), pre-employment background checks. Rich Wiederspahn, Human Resources Director, provided further information on the voucher for Dept. of Family Services. Motion carried. Voting "yes" – all members of the governing body.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for a parcel of land being situated in the SW ¼ NW ¼ of Section 21, T. 4N., R.66W., of the 6<sup>th</sup> P. M., Laramie County, WY (located south of Plain View Road, west of Point Bluff, and north of Apache Street). Don Threewitt, Planning Services Dept., reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Upon inquiry, Mr. Threewitt clarified the area is different from a previous annexation request that had come before City Council. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING

DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM MR-2 MEDIUM DENSITY RESIDENTIAL-DEVELOPING AND PUD PLANNED UNIT DEVELOPMENT DISTRICTS TO HR-2 HIGH DENSITY RESIDENTIAL-DEVELOPING DISTRICT FOR A REPLAT OF LOTS 1 AND 2, BLOCK ONE, FARSON ADDITION AND ALL OF BLOCK ONE, DRY CREEK TWIN HOMES, ALSO TO BE KNOWN AS WOODHAVEN SUBDIVISION, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO WILLS ROAD, SOUTH OF THE DRY CREEK CHANNEL AND PARKVIEW DRIVE)." Mayor Kaysen advised the item was being withdrawn from the agenda pursuant to written request of the developer.

"AN ORDINANCE AMENDING ORDINANCE NO. 3860 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE." Eric Hardgrave, Cheyenne Public Employees Association (CPEA) President, discussed job loyalty by City employees, cost savings ideas that had been submitted to the Mayor for consideration, opposition to reduction in workforce, and concern with proposed employee loss of benefits, particularly longevity pay. The following individuals expressed concerns regarding the proposed ordinance amendments: Nathan Maine, Parks Division; Mark Pollard, Golf Division; John Palmer, Sanitation Dept.; Kelly Kenworthy, 1% Construction Engineering; Dave Sports, 1% Construction Engineering; Steve Pennock, Sanitation; Donn Edmunds, citizen; Ron Conard, Golf Division, and Dick Mason, Building Dept. Topics discussed included: Dividing the proposed ordinance amendments to allow for separate discussion; researching and reviewing various areas for cost savings, including energy savings options, solar/wind energy, energy grants, land sales, fuel usage, and cell phone usage and plans; voluntary time off by higher paid employees; hiring freeze, furlough days; opposition to removal of longevity pay program; review areas involving revenue; employee survey to be generated by the 2009 Leadership class with the support of CPEA to acquire input and suggestions from employees on cost savings or revenue generation; support for furlough days before implementing a reduction in workforce or other options involving wages; suggestion of bringing BOPU "into the fold"; concern with recent softball field agreement with VFW relative to costs; restoration time frame for any benefits which may be lost; employees' concerns with communication issues regarding their input, suggestions and the anticipated budget shortfall; allowing time for areas involving cost reductions/efficiencies by departments to determine effectiveness; review of police vehicle policy; reducing construction and materials costs; statement that furloughs and reductions in workforce doesn't reduce employee workloads, and suggestion of possible reduction in pay option predicated on reassurance monies would be restored when the financial situation improves. Reporting for Finance Committee, Mr. Brown stated there was no recommendation on the item from the Committee. Mr. Collins moved to approve on second reading, seconded by Mr. Brown. Mr. Collins moved to amend Section 4 and Exhibit B to restore longevity pay provisions, seconded by Ms. Broyles. Upon inquiry, City Treasurer Barb Dorr reviewed anticipated budget shortfall amounts for the current fiscal year and potential shortfall for next fiscal year, stating the amount will depend on upcoming state legislative decisions. She also provided information on the City's use of 5th penny sales tax dollars. Motion to amend carried. Voting "yes" – all members of the governing body. Discussion followed on concerns with the next fiscal year budget and state funding assistance to municipalities; employee cost savings ideas (submit to Mayor); energy efficiency efforts and lack of past due diligence in researching and conserving savings; past employee pay increases; City reserves; cell phone plan review to ascertain savings; energy savings and wind generation options, staff overtime costs, potential early retirement offering, and review of all budget areas in conjunction with employee ideas for cost savings. During discussion City Attorney Dan White confirmed there presently is no single cell phone contract plan

and Mayor Kaysen advised a city-wide review of cell phone usage was conducted in June of 2009 and that a point of control is now being utilized and a competitive provider for services process is underway. Upon inquiry regarding a possible early retirement offering, Ms. Dorr advised a review of employees eligible for retirement under the Rule of 85, pursuant to the state retirement program, reflects that if all of the qualified individuals were to retire, \$2,000,000 would be saved during the year. She stated a possible early retirement plan is currently being reviewed. Upon inquiry regarding revenue enhancement areas to assist with the anticipated budget shortfall, Ms. Dorr advised all departments reviewed areas during last spring's budget preparation and many fee areas had been increased. She advised the City is limited in its ability to generate revenue with regard to the amount of property tax assessed and other areas restricted by law. Upon inquiry regarding possible furlough days and the closing of City offices, Mayor Kaysen advised the issue involving furlough days affiliated with closure of City offices to the public had been looked at closely regarding potential energy/utility savings, but there may not be a lot of savings to be realized due to the demand on utilities to "power back up". He explained furlough time on a flexible schedule basis per department (with offices remaining open) would save money while still continuing to provide services to the community. Mayor Kaysen indicated work would continue on a possible early retirement program and noted there are federal laws that must be reviewed and complied with relative to timing issues and notification to eligible employees. With regard to revenue generation, Mayor Kaysen clarified leases are also being reviewed involving use of City athletic fields and programs and provided information on a "pay for play" program that is being considered for a more balanced approach for users as well as for City maintenance and operation costs. Upon inquiry regarding the status of debts/fees owed to the City, Ms. Dorr indicated there is money in arrears owed by customers. Discussion followed on employee cost savings ideas, with input provided by Mr. Hardgrave (CPEA) upon request; developing an early retirement option that would determine the greatest incentive to employees to retire at the lowest cost to the City; percentage of general fund monies involving employee costs and benefits; monetary furlough effect on employees and potential financial "crippling" of the workforce; statement that reduction in workforce may be necessary, and energy efficiency savings. Upon inquiry, Vicki Nemecek, Public Works Dept., provided information on the current energy efficiency program, indicating an energy audit had been conducted and the program is moving forward with grant applications. She explained award of grant funding has very recently been received in the amount of \$547,800.00, which will be used for lighting retrofits, sensors, an energy education element, and a high efficiency boiler, which should result in proposed savings of at least \$168,000 a year. She indicated two other grants have been applied for, and advised it will take some years for the payback on some savings to be realized. Discussion continued on state legislative funding to municipalities; information on state funding provided by a recent Wyoming Association of Municipalities publication, and whether the state can provide any "wiggle room" relative to the timing of reduced funds to be received within the state's biennial budget. Upon inquiry, Ms. Dorr advised she was not aware of any scenario in which the state delayed funding reductions to the second year of a biennial budget instead of implementing within the first budget year. Main motion as amended carried. Voting "yes" – all members of the governing body.

Mr. Pierson moved to change the order of agenda business to bring forward Item #25(a) as the next item of business, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. Mayor Kaysen stated the item, entitled Appointment of Brian N. Kozak as Chief of Police for the City of Cheyenne, would be brought forward for action. Mayor Kaysen introduced Mr. Kozak, who introduced family and friends in attendance, provided a brief

background of his law enforcement career and experience, and commented on his priority of working with and gaining the trust of the community, and working with department staff. Mr. Spiker moved to approve the appointment, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment). Mayor Kaysen advised Mr. Kozak’s first official day of work would be March 1<sup>st</sup>, when he will be sworn in at a ceremony to be held at 8:30 a.m. that day in Council Chambers.

Following a ten minute recess, Mayor Kaysen reconvened the meeting at 8:10 p.m.

“AN ORDINANCE AMENDING ORDINANCE NO. 3861 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR SWORN OFFICERS OF THE CHEYENNE POLICE DEPARTMENT.” Paul Bulman, Police Protective Association President, expressed support for the same amendment as approved for the prior agenda item, involving non-uniformed City employees, as well as a potential early retirement proposal for police officers. John Palmer, Sanitation Dept., questioned the Fire employees union willingness to discuss budget issues with Mayor Kaysen advising a meeting has been scheduled for tomorrow (Jan. 12<sup>th</sup>). Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Mr. Collins moved to amend Section 5 and Exhibit B to restore longevity pay provisions, seconded by Mr. Spiker. Upon inquiry concerning whether an early retirement proposal that might be offered would affect those who have previously retired, Mayor Kaysen advised previous retirees would not be affected. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING SECTION 6.08.020(B), KEEPING OR SLAUGHTERING OF CERTAIN ANIMALS – RESTRICTIONS WITHIN CITY, OF CHAPTER 6.08, ANIMAL CARE AND CONTROL REGULATIONS GENERALLY, OF TITLE 6, ANIMALS, AND AMENDING SECTION 6.20.010, DESIGNATION OF ANIMAL SHELTER, OF CHAPTER 6.20, IMPOUNDMENT, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING” -- referred to Public Services Committee (sponsor - Mr. Brown).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM MR-1 MEDIUM DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICT FOR LOT 3 AND THE EAST 23-FEET OF LOT 4, BLOCK 3, ALTA-VISTA ADDITION, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO E. 17TH STREET, WEST OF CONVERSE AVENUE)” -- referred to Public Services Committee (sponsor - Ms. Ash).

“A RESOLUTION DESIGNATING THE SUNDAYS DURING 2010 THAT ANNUAL LIQUOR LICENSEES MAY EXTEND DISPENSING ROOM HOURS OF OPERATION FOR SALES UNTIL 2:00 A.M. THE FOLLOWING DAY.” Bryan Grzegorzcyk, Laramie County Liquor Association, spoke in favor of the resolution and advised the four Sundays being requested are Super Bowl Sunday, Sunday of Memorial Day weekend, 4<sup>th</sup> of July and the first Sunday of Frontier Days. He reviewed fundraising efforts by liquor licensees that assist with community

support programs, and stated the Association is developing a proposed program to provide driver transportation services in support of responsible consumption. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to adopt, seconded by Ms. Case. Upon inquiry, Mr. Grzegorzczuk provided further information on the proposed driver transportation program. Pursuant to inquiry made at the Finance Committee meeting, Captain Jeff Schulz, Interim Police Chief, reported there was no notable increase involving DUI statistics relative to extended hours approved for the four Sundays in 2009. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Broyles, Mr. Pierson and Mr. Spiker voting “no”. (#5177)

“RESOLUTION – AUTHORIZATION FOR THE MAYOR AND CITY CLERK TO EXECUTE A STATE HISTORIC PRESERVATION OFFICE (SHPO) CERTIFIED LOCAL GOVERNMENT GRANT AWARD FOR HISTORIC PRESERVATION BOARD MEMBER ATTENDANCE AT THE 2010 SAVING PLACES CONFERENCE.” Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to adopt, seconded by Mr. Collins. Upon inquiry, Don Threewitt, Urban Planning Services, noted the Historical Preservation Board is part of the City’s Certified Local Government (CLG) program with grants and funding assistance available as part of the City’s CLG status. He advised due to the status the City is awarded funding annually, and explained training for Board members and staff helps maintain CLG status for funding sponsorship. He indicated the proposed grant award would fund registration for 2 Board members and one city staff member to attend a training conference, fulfilling requirements necessary to continue qualification for CLG grants, and stated expense to the City for the training would involve use of a City vehicle and fuel (approximately \$25.00), and that all meal costs would be the personal responsibility of attendees. Upon inquiry, Mr. Threewitt provided further information on training requirements relative to current and potential future grant funds. Motion carried. Voting “yes” – all members of the governing body. (#5178)

[CA] “A RESOLUTION APPROVING AN AMENDED PROMISSORY NOTE FOR CLEAN WATER SRF LOAN - 081 BETWEEN THE STATE OF WYOMING AND THE CITY OF CHEYENNE, WYOMING FOR CHEYENNE’S RECYCLE WATER SYSTEM EXTENSION PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN THE AMENDED PROMISSORY NOTE” (Water Enterprise Fund) -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A RESOLUTION SUPPORTING THE CITY OF CHEYENNE’S APPLICATION FOR A LAND AND WATER CONSERVATION FUND GRANT FOR THE SADDLE RIDGE PARK PICNIC SHELTER PROJECT” (Community Facility Fees & In-kind labor) -- referred to Finance Committee (sponsors - Mr. Brown, Ms. Broyles and Mr. Pierson).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR FRONTIER EAST, 1<sup>ST</sup> FILING, A PORTION OF THE NW¼ OF SECTION 4, T. 13N., R. 66W., OF THE 6<sup>TH</sup> P.M., LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF AND ADJACENT TO CAMPSTOOL ROAD, EAST OF MORRIE AVENUE)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT.§15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS A PORTION OF SECTIONS 12 AND 13, T. 13N., R. 67W., OF THE 6<sup>TH</sup> P. M., LARAMIE

COUNTY, WY (GENERALLY LOCATED EAST OF SOUTHWEST DRIVE, SOUTH OF INTERSTATE 80, WEST OF BNSF RAILROAD, AND NORTH OF WOODENSHOE ROAD, INCLUDING CHEYENNE ANIMAL SHELTER AND ASSOCIATED RIGHTS-OF-WAY)” -- referred to Public Services Committee (sponsor - Ms. Ash).

#### **PRELIMINARY PLATS/PRELIMINARY ZONE CHANGE:**

Preliminary Plat for Woodhaven Subdivision, a replat of Lots 1 and 2, Block One, Farson Addition and all of Block One, Dry Creek Twin Homes, Cheyenne, Wyoming (located east of and adjacent to Wills Road, south of the Dry Creek Channel and Parkview Drive. Mayor Kaysen advised the item was being withdrawn from the agenda pursuant to written request of the developer.

#### **LEASES/CONTRACTS/LEGAL:**

[CA] Contract between the City of Cheyenne, Transit Division and Wyoming Department of Health, Aging Division, for supportive services to older and disabled adults (Title III-B Program Grant) -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Department and Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites and Trails, for a Motorboat Gas Tax Grant for fence/handrail along boat launch and promenade at Sloans Lake (Parks & Recreation Budget & In-kind labor and equipment use) -- referred to Finance Committee.

[CA] Beverage Agreement between the City of Cheyenne, Parks & Recreation Department and Pepsi-Cola Bottling Company to provide pouring rights and sponsorship recognition at the Youth Activity and Community Center -- referred to Finance Committee.

[CA] Professional Services Contract between the City of Cheyenne and Wyoming Travel and Tourism for interpretive signs at two downtown historic sites (In-kind services/no cash match) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives and State of Wyoming, Department of Family Services, Division of Juvenile Services for juvenile diversion and transitional services -- referred to Finance Committee.

[CA] Program Funding Agreement between the City of Cheyenne, Transit Division and United Way of Laramie County for Bus Token Assistance for low to moderate income levels -- referred to Finance Committee.

#### **CHANGE ORDERS/CONTRACT MODIFICATIONS:**

[CA] Contract Modification No. 1 to Contract No. 5364 between the City of Cheyenne and S&S Builders, LLC for additional quantities needed to complete the signal installation at Dell Range and Marble Avenue (2003-2006 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$2,917.00). (#5364)

[CA] Contract Modification No. 1 to Contract No. 5477 between the City of Cheyenne and Recco, Inc. d/b/a Five-R-Co. to lower the power lines to the Transfer Station gas. Motion (per Consent Agenda) carried (amount not to exceed \$1,496.00). (#5477)

Contract Modification No. 1 to Contract No. 5045 (Clerk's note: Correct Contract No. is 5405) between the City of Cheyenne and J-R Engineering, LLC for design services on the 2009 Bus Stop Upgrades Project (Federal Transit Authority & American Reinvestment and Recovery Act). Mr. Brown moved to approve, seconded by Mr. Valdez. It was advised the Mayor's Council for People with Disabilities had expressed concerns regarding the bus stop locations in proximity to certain stores. Upon inquiry, Joe Dougherty, Transit Director, provided information on transit stops located along certain store areas off Dell Range Blvd. and alternatives reviewed to make stops easier and safer for both buses and passengers to access. He advised concerns had been raised regarding moving the stops out to Dell Range so locations were chosen with easier access and accessibility with minimal walking distance for passengers. Upon inquiry, Laura Page, Engineering Office, advised minimum ADA standards are being met and that compromises were made in some areas in lieu of having to acquire right-of-way property. Concerns were expressed regarding accessibility from designated locations for those individuals with disabilities. Mr. Dougherty provided information on bus stop standards relative to user destination distances, indicating, although not a perfect situation, locations of the stops are a reasonable accommodation; reviewed other stop locations involving Frontier Mall and the post office near Converse Ave.; discussed evaluation of bus shelter advertising, if funding for the shelters is available, and stated curb-to-curb transit services are available as an option for individuals having special needs. Upon inquiry, Ms. Page reviewed logistics involving the location of the bus shelter near the post office, and clarified the contract was for an amount not to exceed \$29,790.00 (ARRA funding). Motion carried. Voting "yes" -- all members of the governing body. (#5045)

Contract Modification No. 4 to Contract No. 4968 between the City of Cheyenne and Wyoming Department of Transportation for the reconstruction of Pershing Blvd from I-25 to Pioneer Avenue (2003-2006 1% Sales Tax). Mr. Brown moved to approve in an amount not to exceed \$577,013.00, seconded by Mr. Collins. Upon inquiry, Doug Vetter, City Engineer, explained the total project cost estimate is \$6.63 million. Discussion included concern with the number of traffic lanes proposed (2 lanes plus 1 turning lane), objection in the past from residents along the route relative to loss of trees, and right-of-way issues. Mr. Vetter advised, following an evaluation, it had been determined that a 3 lane section of road should handle traffic volumes, and noted the current absence of a center turn lane has resulted in accidents. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Pierson voting "no". (#4968)

[CA] Contract Modification No. 3 to Contract No. 5316 between the City of Cheyenne and J-2 Contracting Co., Inc. for partial release of retention funds, for the David R. Romero South Cheyenne Community Park Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

## **CONSIDERATION OF BIDS:**

[CA] Consideration of Bid #R-7-10 for furnishing and installing one new single ram baler and one new roller chain conveyor from JDM Equipment, LLC of Arvada, CO for the Transfer Station. Motion (per Consent Agenda) carried (amount not to exceed \$343,653.00).

[CA] Consideration of Bid #R-6-10 for furnishing one new street sweeper with conveyor belt from Titan Machinery of Cheyenne for the Street & Alley Department (2003-2006 & 2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid for surplus property from Total Energy Corp., North Salem, NY, for two large propane storage tanks previously utilized by the Board of Public Utilities -- referred to Finance Committee.

[CA] Consideration of Bid for surplus property from Green River/Rock Springs/Sweetwater County - Joint Powers Water Board, (GRRS/JPWB), for an Opto-22 computer control system used for filter backwash control at the old RL Sherard Water Treatment Plant -- referred to Finance Committee.

#### **APPLICATIONS:**

[CA] Transfer of ownership for a restaurant liquor license application filed with the City Clerk's Office for Wei Sheng Qiu d/b/a Golden House Chinese Restaurant, 1651 Carey Ave., Ste. 8, Cheyenne, WY (License currently held by Yu Zheng d/b/a Golden House Restaurant, 1651 Carey Ave., Ste. 8, Cheyenne, WY). Motion (per Consent Agenda) carried.

#### **ANNOUNCEMENTS/REPORTS/MOTIONS:**

Announcement was made that due to the Martin Luther King, Jr., holiday on Monday, January 18, 2010, Finance Committee will meet at 11:00 a.m. and Public Services Committee will meet at 12:15 p.m. on Tuesday, January 19, 2010, in Council Meeting Room 122; Vouchers meeting will be held in Council Chambers at Noon.

#### **OTHER CITY BUSINESS:**

John Palmer suggested public discussion procedures be reviewed to provide for additional input after governing body discussions; expressed concern with limited information provided on meeting agendas, and commented that community residents need to help with financial responsibility relative to fee increases. Frank Cole concurred with Mr. Palmer's statement concerning the public discussion process, and commented a right turn lane is needed on Rue Terre/Dell Range and that land had previously been donated by the Cole family to the City for that purpose. Pacomio Sandoval expressed his agreement with prior comments involving public comment at meetings, and suggested outdated laws be reviewed for potential elimination from the codebook. Dr. Rinne commented on a constituent concern he had received regarding City snow plows clearing snow resulting in blocking driveways and walkways after residents have previously cleared them pursuant to ordinance requirements.

City Attorney Dan White requested the governing body meet in executive session to discuss matters involving current and potential future litigation matters. Mr. Collins moved to meet in executive session, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and other staff as requested by the City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City

Council meeting would officially conclude at the close of the executive session. (Clerk's Note: Executive session convened at 9:15 p.m. following a brief recess.)

There being no further business to come before the governing body prior to executive session, the meeting was officially adjourned at 10:37 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

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